

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ATIYEH GHOREYSHI,

Petitioner

VS.

SIRVAN MANHOObI,

Respondent

) Case Number: FPT-25-378651

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: MOTION TO COMPEL INTIAL RESPONSE TO DISCOVERY REQUESTS
AND MONETARY SANCTIONS; REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Atiyeh Ghoreyshi (Mother) and Respondent Sirvan Manhoobi (Father) are not married.
The parties have one minor child, Dylan (DOB: 12/11/2023). Mother is represented by attorney
Aylin Acikalin. Father is represented by attorney Aidin Okhovat.
- 2) On 8/27/2025, Mother filed a Request for Domestic Violence Restraining Order against Father.
The initial Temporary Restraining Order was denied. However, an amended Temporary
Restraining Order was filed on 10/1/2025 which issues an Order to Not Abuse against Father;
gives Mother temporary sole legal and physical custody of Dylan; and provides parenting time to
Father on Monday, Wednesday, and Thursday evenings.
- 3) The Court held long-cause hearings on Mother's Request for DVRO and on custody and
visitation on 1/29/2026 and 2/13/2026. A third afternoon is currently set for a long-cause hearing
on 5/21/2026.

1 4) Motion to Compel Discovery and for Sanctions

- 2 a. On for hearing is Father's Request for Order filed 1/20/2026 asking the Court to compel
3 Mother to produce responses to his Request for Production of Documents and Form
4 Interrogatories. Father also seeks monetary sanctions in the amount of \$3,367.75 under
5 Code of Civil Procedure section 2023.010 et seq. and 2031.300 for fees and costs
6 incurred to date and anticipated to be incurred for Father to bring this motion.
- 7 b. On 1/20/2026, Father filed a declaration. Father states that his Demand for Production of
8 Documents, Set One and Form Interrogatories, Set One were mailed and emailed to
9 Mother's attorney on 9/17/2025. Father states that the responses were due 1.5 months ago
10 but no responses have been received. Father attached a copy of his Demand for
11 Production to his declaration. His production demand seeks information regarding
12 Mother's earnings, assets, expenses, attorney's fees incurred to date, the children's health
13 insurance, and expenses related to the children.
- 14 c. On 1/20/2026, Father filed a Memorandum of Points and Authorities citing various
15 statutes in the Civil Discovery Act.
- 16 d. On 3/9/2026, Mother filed a Responsive Declaration and Memorandum of Points and
17 Authorities asking the Court to deny Father's motion to compel and request for sanctions.
18 Mother argues that Father did not first seek good cause for discovery under Family Code
19 section 6309 prior to issuing discovery.
- 20 e. Father did not file a Reply Declaration.
- 21 f. Father's motion to compel was originally set to be heard in Dept. 405A before
22 Commissioner Rahim on 3/25/2026. However, the hearing was reset to 4/28/2026 in
23 Dept. 404 because of a non-stipulation to Commissioner Rahim.

24 5) Request for Need-Based Attorney's Fees

- 25 a. Also on for hearing is Father's Request for Order filed 2/9/2026 asking that the Court
26 award Father \$53,839.75 in need-based attorney's fees and \$1,954.75 in costs under
27 Family Code section 7605. Father states that he has incurred \$34,804.75 in fees and costs
28 to date and estimates that he will incur an additional \$21,043.75 in this matter.
- 29

- 1 b. On 2/9/2026, Father's attorney filed a declaration. Father's attorney states that he has
2 spent 73 hours on this case to date. Father's attorney attached a redacted copy of Father's
3 invoices. Father's attorney states that he has been practicing law for over 10 years and
4 has handled over one thousand family law cases of all difficulty levels. Father's attorney
5 states that he has "never seen a litigant be as obsessive and litigious as Petitioner."
6 Father's attorney states that Mother's attorney bombards his inbox with "insignificant
7 and condescending messages" and that it has gotten to a point that he cannot keep up with
8 the constant and excessive demands from Mother's counsel.
- 9 c. On 3/10/2026, Father filed a second Request for Order seeking \$53,839.75 in need-based
10 attorney's fees and \$1,954.75 in costs. Father and his attorney filed accompanying
11 declarations which are identical to the declarations filed in support of Father's 2/9/2026
12 Request for Order.
- 13 d. On 4/17/2026, Mother filed a Responsive Declaration and Memorandum of Points and
14 Authorities asking the Court to deny Father's request for fees. Mother states that Father is
15 engaging in aggressive litigation and intimidation and is receiving pro bono service from
16 a friend. Mother also states that she lived off her savings during a period of
17 unemployment between October 2024 and August 2025. She states further that she is
18 solely providing financially for their child and relies on her savings to pay for legal fees,
19 therapy, and for 100% of the parenting coordinator's fees (which Mother agreed to pay in
20 an effort to reduce litigation costs). Mother notes that Father has not filed an Income and
21 Expense Declaration to date. Mother states that in his deposition on 9/29/2025, Father
22 stated under oath that his estimated income is between \$45,000 and \$55,000. Mother also
23 states that Father has 60 – 70 musical instruments worth a combined total of at least
24 \$150,000. Mother also states that Father has no housing expenses as he stays in the guest
25 room of a relative. Mother also states that a fee award is premature and inequitable while
26 her request for DVRO is pending.
- 27 e. On 4/17/2026, Mother filed an Income and Expense Declaration. Mother states that she is
28 44 years old and that she is a Director of Machine Learning Engineering for Genentech.
29 Mother states that she earns on averages \$28,928 per month as well as \$3,500 per month

1 in rental income. Mother states that she has \$20,000 in cash savings, \$100,000 in
2 investments, and \$400,000 in real property. Mother states that her monthly expenses total
3 \$31,693 per month. Mother states that she has incurred \$113,756 in fees to date using
4 savings and stocks and that she currently owes her attorney \$20,000.

5 f. On 4/23/2026, Father filed a Reply Declaration and Memorandum of Points and
6 Authorities. Father denies having engaged in excessive litigation and states that he has
7 now filed an Income and Expense Declaration.

8 g. On 4/23/2026, Father filed an Income and Expense Declaration. Father states that he is 43
9 years old and that he is self-employed as a musician. Father states that he earns on
10 average \$1,386 per month. He states that his income has changed within the past 12
11 months due to “cancelled events / concerts / sessions.” Father lists no cash savings or
12 investments and states that he owns \$2,000 in real property. Father does not state that he
13 lives with anyone else, although he lists no housing expenses. He states that his estimated
14 monthly expenses total \$4,580. Father states that he owes \$12,200 in credit card debt and
15 owes \$12,400 for a personal loan. Father states that he has paid his attorney \$0 to date
16 and that he still owes his attorney “TBD.”

17 **B. Findings and Order**

18 1) The Court finds that Family Code section 6309 does not apply to Father’s Demand for Production
19 of Documents, Set One or Form Interrogatories, Set One. The Court has reviewed the discovery
20 requests and finds that they are related solely to Mother’s finances (which the Court finds is
21 relevant for purposes of attorney’s fees and child support) and do not seek information in support
22 of Mother’s Request for DVRO. In addition, the Court has reviewed the discovery requests and
23 do not find that they are harassing or overly burdensome. Mother missed the deadline to respond
24 to Father’s discovery requests. Therefore, all objections have been waived under Code of Civil
25 Procedure section 2031.300 and 2030.290. The Court finds good cause to award to Father
26 monetary sanctions under Code of Civil Procedure section 2030.290(c) and 2031.300(c). No later
27 than 5/15/2026, Mother shall pay to Father \$2,500 in attorney’s fees sanctions. The Court hereby
28 orders Mother to produce code-compliant responses to Father’s Demand for Production of
29 Documents, Set One and Form Interrogatories, Set One, without objection, no later than

6/15/2026 at 5:00 PM. The Court is giving Mother additional time to respond to Father's discovery requests given that the hearing on her Request for DVRO has yet to conclude.

2) The Court finds good cause to continue the hearing on Father's request for need-based attorney's fees to **Tuesday, 7/21/2026 at 9:00 AM in Dept. 404**, to follow the conclusion of the long-cause hearing on Mother's Request for DVRO, custody, and visitation. At least 20 calendar days prior to the next hearing date, Father's attorney shall file and serve a declaration (not to exceed 10 pages, not including exhibits) providing a more granular and detailed breakdown of the fees and costs charged to Father to date, the tasks performed, and the amount of hours spent. Without this information, the Court is unable to assess the reasonableness of Father's request, and the Court is currently unable to assess this information based on the heavily redacted invoices attached to Father's attorney's declarations filed to date. Moreover, Father's attorney shall specifically remove all fees and costs incurred to defend against Mother's Request for DVRO given that Father's request for fees is currently being brought under Family Code section 7605 and a fee request under Family Code section 6344 has not yet been put at issue. At least 10 calendar days prior to the next hearing date, Mother may file a declaration responding to Father's updated fee declaration.

3) Father's attorney shall prepare the Findings and Order After Hearing.

4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).